

Partner, Affiliate & Developer Agreement — Get Goods Gratis (Free)

⚠ **DRAFT — NOT LEGAL ADVICE.** This is an inventor-prepared **template** agreement for qualified counsel to review, tailor, and approve before it is offered to any partner. It is the contract with the **counterparties the platform pays real cash** — affiliates, developers, and creators/endorsers — and is the counterpart to the tax/1099 pipeline. Bracketed items **[LIKE THIS]** are decisions for counsel/owner. It is distinct from the consumer Terms of Service and the Advertiser Agreement. Prepared 2026-09-13.

0. Orientation

This Agreement governs a **business relationship** in which a partner is paid **real money** (a revenue share, commission, or fee) for referring business, supplying integrations/content, or endorsing the platform. It does **not** apply to everyday consumer users, who are closed-loop (non-cashable Site Cash) and are governed by the Terms of Service. **[Counsel: confirm one combined agreement vs. separate Affiliate / Developer / Creator addenda; the core terms below are shared, with role-specific schedules.]**

1. Parties and relationship

This Agreement is between **[LICENSOR — legal entity/owner name]** ("Company," "we") and the person or business accepting it ("Partner," "you"). You are an **independent contractor**, not an employee, agent, partner, or joint venturer. You have no authority to bind the Company. Nothing here creates an exclusive relationship.

2. Eligibility

You must be **18+** (or the age of majority where you are) and, where you act as a business, authorized to contract. You must provide accurate identity and, where paid at/over the reporting threshold, **tax documentation** (§6). **[Counsel: any sanctions/export screening or restricted-jurisdiction list.]**

3. The programs (role-specific)

- **Affiliate** — refers businesses/users via approved links/codes; paid a revenue share/commission on qualified, verified activity. Referral is **single-tier** (no multi-level/downline compensation).
- **Developer** — supplies integrations, software, or digital products for the store/marketplace; paid a revenue share on sales/usage.
- **Creator / Endorser** — supplies content or endorsements; paid per the applicable schedule and subject to the FTC disclosure obligations in §8 and `SOCIAL-ENDORSER-AND-REFERRAL-LEGAL-BRIEF.md`.

Specific rates, attribution windows, and qualification rules are set out in the applicable **Schedule / dashboard terms**, which the Company may update prospectively on notice. **[Counsel: change-of-terms mechanism + notice.]**

4. Payment and revenue share

- Payments are the **revenue share/commission/fee** stated in your Schedule, calculated from the Company's **server-authoritative money ledger**, paid in real currency via the enabled rails (e.g., PayPal/Venmo/Cash App) on the stated cadence, subject to a **minimum payout threshold** and fraud/clawback holds (§7).
- Consumer Site Cash is **not** money and is never paid to partners as cash; partner payouts are ordinary vendor payments. **[Counsel: confirm payment terms, currency, FX, and processor-agreement consistency.]**

5. Fraud, verification, and clawback

Payments are earned only on **genuine, verified** activity. The Company may withhold, reverse, or **claw back** amounts tied to fraud, self-dealing, incentivized/undisclosed traffic, chargebacks, returns, duplicate/multi-accounting, or breach. Referral rewards are activity-tied and clawback-gated. **[Counsel: clawback window + dispute process.]**

6. Taxes (W-9 / 1099 / backup withholding)

You are responsible for your own taxes. Before we can pay you at/over the reporting threshold without withholding, you

must submit a valid **W-9** (or the applicable W-8/foreign equivalent). Absent a W-9 on file at or above the **\$600** 1099-NEC threshold, **24% backup withholding** applies, and we file a **1099-NEC** for qualifying payments. See `TAX-1099-PIPELINE.md` and `TAX-OBLIGATIONS-AND-FILINGS-BRIEF.md`. **[Counsel/CPA: confirm thresholds, foreign-payee handling, and TIN security.]**

7. Intellectual property

- **Company IP.** We own the platform, marks, and content; you get a limited, revocable license to use approved links, codes, and marketing assets solely to perform under this Agreement, per our brand guidelines.
- **Partner-supplied material.** You grant us a license to use what you supply (content, integrations) to operate and promote the platform. **[Counsel: for Developers, decide ownership/licensing of integrations and any code — work-made-for-hire vs. license — and open-source obligations.]**
- **Feedback** may be used without obligation to you.

8. Your representations and compliance

You represent that you will: comply with law and our policies (including the **Acceptable Use Policy**); make truthful, non-misleading claims and **clearly disclose the material connection** (FTC endorsement guides) in any endorsement/referral content; not make earnings or results guarantees on our behalf; not spam, cloak, or use prohibited traffic; not infringe third-party rights; and protect any user data you touch per our Privacy Policy and applicable law. **[Counsel: endorsement-disclosure wording + monitoring obligation.]**

9. Confidentiality

Each party protects the other's non-public information and uses it only to perform this Agreement.

10. Term, termination, and suspension

Either party may terminate on notice; we may suspend or terminate immediately for breach, fraud, or legal risk. On termination, licenses end, you stop using our marks/links, and **accrued, verified, non-clawed-back** amounts are paid on the normal cycle. Sections that should survive (IP, confidentiality, taxes, disclaimers, liability, governing law) survive.

11. Disclaimers and limitation of liability

The program is provided "as is"; we do not guarantee any level of earnings, traffic, or availability. **To the maximum extent permitted by law**, neither party is liable for indirect/consequential damages, and our total liability is limited to **[AMOUNT/FORMULA — e.g., amounts paid to you in the prior [3/6] months — counsel to set]**. **[Counsel: carve-outs (IP infringement, confidentiality, indemnity).]**

12. Indemnification

You indemnify the Company against claims arising from your breach, your content/traffic, your tax status, or your violation of law or third-party rights. **[Counsel: mutual vs. one-way; caps; defense control.]**

13. Governing law and disputes

Governed by the laws of **[STATE/COUNTRY — counsel]**. **[Counsel: arbitration + class-action waiver vs. courts; venue; align with the Terms of Service and Advertiser Agreement.]**

14. General

Independent contractors; no assignment without consent (we may assign to an affiliate/successor); entire agreement for the subject matter; changes prospective on notice; severability; no waiver by delay.

15. Contact

[Legal entity name, contact email/address.] Intended web address: `getgoodsgratis.com`.

Notes for counsel (decisions to finalize)

1. **One combined agreement vs. role-specific addenda** (Affiliate / Developer / Creator) (\$0/\$3).
2. **Independent-contractor classification** and any state-specific worker-classification exposure (\$1).

3. **Payment terms** — rates, thresholds, cadence, FX, processor-agreement consistency (§4).
4. **Clawback window + dispute process** (§5).
5. **Tax** — W-9/W-8, \$600 threshold, 24% backup withholding, foreign payees, TIN security (§6).
6. **IP ownership** of developer integrations/content (work-for-hire vs. license) + open-source (§7).
7. **FTC endorsement disclosure** wording + monitoring for creators/endorsers (§8).
8. **Liability cap + indemnity** scope and carve-outs (§§11-12).
9. **Governing law / arbitration**, consistent across ToS + Advertiser Agreement (§13).
10. **Single-tier referral** confirmed (no MLM/pyramid characterization) (§3).

This is a draft template, not legal advice, and is not a substitute for review and finalization by a licensed attorney. Related: TAX-1099-PIPELINE.md, TAX-OBLIGATIONS-AND-FILINGS-BRIEF.md, SOCIAL-ENDORSER-AND-REFERRAL-LEGAL-BRIEF.md, TERMS-OF-SERVICE.md.